

26VECV02031 26VECV02031

County: los-angeles

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Case Number: 26VECV02031 Hearing Date: August 10, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

OLGA ANOSHECHKINA, an individual,

Plaintiff,

vs.

JULIA MARIE LYSIK, an individual; CHRISTIAN MICHAEL LUSK, an individual; and DOES 1-5, inclusive,

Defendants.

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CASE NO: 26VECV02031

[TENTATIVE] RULING RE: DEFENDANTS' DEMURRER TO THE COMPLAINT AND MOTION TO STRIKE PORTIONS THEREOF

Dept. Uç

8:30 a.m.ç

August 10, 2026

BACKGROUND

This case is a landlord/tenant action filed by Landlord-Plaintiff Olga Anoshechkina against Tenant-Defendants Julia Marie Lysik and Christian Michael Lusk. Plaintiff is self-represented.¹

On April 7, 2026, Plaintiff filed her complaint against Defendants, alleging: (1) gross negligence; (2) breach of contract; (3) breach of the implied covenant of good faith and fair dealing; (4) fraud; (5) negligent misrepresentation; (6) intentional infliction of emotional distress ("IIED"); and (7) negligent infliction of emotional distress ("NIED").

On May 29, 2026, Defendants filed their demurrer to the complaint and motion to strike portions thereof.

As of 5:00 P.M. on August 5, 2026, Plaintiff had filed no opposition brief.

RULING

The demurrer is overruled as to Plaintiff's second and third causes of action. The demurrer is otherwise sustained. The motion to strike is granted. Unless Plaintiff presents explanation and argument on the day of the hearing to show that she can cure the defects identified herein through amendment, Plaintiff is granted leave to amend only as to portions of the complaint related to seeking attorneys' fees.

LEGAL STANDARD

Demurrer

A demurrer is a procedure to object to a pleading set forth under Code of Civil Procedure section 430.10, et seq. Because a demurrer tests the pleadings alone and not the evidence or other extrinsic matters, a demurrer analysis considers only those defects which appear on the face of the pleading or are judicially noticed. *SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905. When considering demurrers, courts assume the truth of the facts alleged in the pleading and read the allegations liberally and in context. *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.

A demurrer for sufficiency attacks a pleading on the ground that it does not contain facts sufficient to state a cause of action. Code Civ. Proc., § 430.10 (e); *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.

Motion to Strike

The Court has broad authority to strike any portion of a pleading drawn not in conformity with the law and its orders. Code Civ. Proc., § 436. The trial court shall strike an allegation of punitive damages on motion unless the plaintiff has pleaded ultimate supporting facts. *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.

DISCUSSION

Defendants demur to each cause of action in the complaint: (1) gross negligence; (2) breach of contract; (3) breach of the implied covenant of good faith and fair dealing; (4) fraud; (5) negligent misrepresentation; (6) IIED; and (7) NIED. Defendants also move to strike various portions of the complaint on several grounds.

Review of Allegations in the Complaint

Plaintiff pleads that she is a licensed real estate broker. Plaintiff alleges she managed a rental unit at 4401 Kraft Ave in Studio City for Defendants, her tenants. In late December 2025, Defendants reported a leak and possible mold on the master bedroom ceiling, but then repeatedly refused to let Plaintiff into the unit to inspect and fix it, despite the lease requiring her to have access to investigate and remediate mold and repair issues. (Complaint, ¶¶ 2-6, 11-14.)

Plaintiff alleges that when she finally got into the unit on January 11, 2026, she found the roof had leaked during a storm and needed the room cleared out so equipment could run for 48 hours. Defendants told Plaintiff to stop remediation altogether, saying they wanted the mold to spread so they could get a large insurance payout (over \$100,000). Plaintiff alleges Defendants offered her \$20,000 to help make that happen. Plaintiff refused. (Complaint, ¶¶ 15-16.)

Defendants continued blocking access, then agreed to let Plaintiff work only on Saturdays and only while they watched and recorded her. Defendants repeatedly promised to move their belongings out of the room so it could be treated but then failed to do so. Defendants secretly installed hidden cameras to monitor Plaintiff's work. (Complaint, ¶¶ 17-19, 33.)

After the roof was repaired on January 16, Defendants kept failing to follow basic mold-prevention steps required by the lease. These included keeping the window shut, keeping houseplants in the room, and continuing to shower. Plaintiff says Defendants told her they only wanted her cooperation against the insurance company, not her repair work. (Complaint, ¶¶ 20-23.)

On January 19, 2026, the parties agreed to end the lease early, effective January 31, 2026, with a move-out inspection and repainting paid for by Defendants. Plaintiff confirmed this in writing, but Defendants didn't move out as agreed. (Complaint,

¶¶ 24-27.)

In early February 2026, the tenants agreed to move to a nearby unit by February 14, 2026, to let the remediation proceed. Defendants then reversed course on that date, stayed in the unit, and said they no longer wanted any remediation work done. Defendants continued blocking use of drying equipment while their pets were present. (Complaint, ¶¶ 28-30.)

Plaintiff says Defendants told her they would stay elsewhere for a few days so equipment could run continuously in an empty room. Relying on that representation, Plaintiff hired contractors and paid for the work. Defendants instead left their belongings in the room, secretly recorded Plaintiff with hidden cameras, and actively interfered with the remediation by moving the equipment, leaving windows and doors open, and hiding two containers of water in the room. (Complaint, ¶¶ 31-35.)

In March 2026, Plaintiff reported to Defendants that the room was mold-free. Defendants didn't accept this. On March 23, 2026, Defendants threatened to withhold rent until the walls and ceiling were replaced. On April 2, 2026, Defendants demanded a full drywall and repaint job before they'd pay anything. As of when Plaintiff filed the complaint, Plaintiff says Defendants failed to pay \$4,100.00 for rent to cover April 2026. (Complaint, ¶¶ 36-39.)

The complaint is not uncertain.

Defendants demur to the complaint on grounds that it is uncertain because it does not tie specific facts to specific Defendants and causes of action.

Plaintiff alleges Defendants cohabitated in the unit. That Plaintiff alleges tortious conduct by both Defendants collectively is thus logical and does not render the complaint uncertain.

As to Plaintiff's individual causes of action, Plaintiff includes enough specific allegations for Defendants to know and understand what claims underlying each cause of action need to be admitted or denied. For purposes of a demurrer for uncertainty, this is sufficient.

The demurrer for uncertainty is overruled.

Plaintiff's allegations are sufficient to state breach of contract and breach of the implied covenant of good faith and fair dealing claims.

Defendants demur to the following causes of action in the complaint: (2) breach of contract; (3) breach of the implied covenant of good faith and fair dealing.

The necessary elements for breach of contract are: (1) a valid contract; (2) a plaintiff's full performance of its obligations under the contract; (3) a defendant's breach of the contract; and (4) resultant damages. *Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178.

The necessary elements for breach of the implied obligation of good faith and fair dealing are: (1) the existence of contractual relationship; (2) an implied duty; (3) breach; and (4) causation of the plaintiff's damages. *Smith v. San Francisco* (1990) 225 Cal.App.3d 38, 49. Allegations supporting a claim for breach of the implied covenant of good faith and fair dealing must show that the defendant's conduct "demonstrates a failure or refusal to discharge contractual responsibilities, prompted ... by a conscious and deliberate act." *Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1395.

Plaintiff alleges Defendants breached several specific provisions of their lease agreement pertaining to keeping the unit clean, controlling moisture in the unit, allowing Plaintiff to inspect the unit for moisture or mold, promptly reporting moisture or mold, and allowing Plaintiff to enter the residence to remediate mold. Plaintiff specifies which lease provisions were breached and includes their text directly in the complaint. For purposes of a demurrer, this is sufficient to support a breach of contract claim.

Plaintiff also alleges Defendants' failure to allow Plaintiff to enter the unit as required under the lease was prompted by a conscious and deliberate effort to allow mold to continue unabated so that Defendants could obtain an insurance payout. For purposes of a demurrer, this is sufficient to support a breach of the implied obligation of good faith and fair dealing claim, which requires a conscious and deliberate act.

The demurrer is overruled as to Plaintiff's second cause of action for breach of contract and third cause of action for breach of the implied obligation of good faith and fair dealing.

Plaintiff's allegations are insufficient to state her remaining causes of action.

Defendants demur to the following causes of action in the complaint: (1) gross negligence; (4) fraud; (5) negligent misrepresentation; (6) IIED; and (7) NIED.

The necessary elements for negligence are: (1) that the defendant owed a legal duty to the plaintiff to use due care; (2) a breach of that duty; (3) causation; and (4) damages to the plaintiff. *County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318. "Gross negligence long has been defined in California and other jurisdictions as either a want of even scant care or an extreme departure from the ordinary standard of conduct." *City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 754 (internal quotations omitted).

The necessary elements for fraud are: (1) misrepresentation; (2) knowledge of falsity; (3) intent to defraud; (4) justifiable reliance; and (5) resulting damage. *Conroy v. Regents of Univ. of Cal.* (2009) 45 Cal.4th 1244, 1255. Additionally, any action sounding in fraud must be pleaded with particularity. *City of Pomona v. Superior Court* (2001) 89 Cal.App.4th 793, 803. This heightened pleading standard requires a plaintiff to plead facts in his complaint showing "how, when, where, to whom, and by what means the representations [amounting to fraud] were tendered." *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.

The necessary elements for negligent misrepresentation are: (1) the defendant's assertion of an untrue fact; (2) the fact was believed by the defendant to be true; (3) the defendant lacked a reasonable ground for the belief; (4) the defendant intended to induce the plaintiff's reliance upon the representation; (5) plaintiff's justifiable reliance upon the representation; and (6) resulting damage. *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 182. Like fraud, a claim for negligent misrepresentation must be pleaded with particularity. *Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 185, fn. 14.

The necessary elements for NIED are: (1) the defendant's legal duty to use due care; (2) the defendant's breach of such a legal duty; (3) causation; and (4) damages in the form of serious emotional distress. *Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129.

The necessary elements for IIED are: (1) outrageous conduct by the defendant; (2) which was intentional or reckless in nature; (3) severe emotional distress; and (4) causation. *Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.

As to IIED and NIED, a plaintiff "must plead specific facts that establish severe emotional distress resulting from [a defendant's] conduct." *Michaelian v. State Comp. Ins. Fund* (1996) 50 Cal.App.4th 1093, 1114. A plaintiff may

sufficiently allege severe emotional distress by including facts related to her resultant depression, anxiety, physical illness; specific allegations as to symptoms may be helpful. See, e.g., *Hailey v. California Physicians' Service* (2007) 158 Cal.App.4th 452, 476-477 (plaintiff sufficiently alleged severe emotional distress by claiming "emotional distress has resulted in vomiting, stomach cramps, and diarrhea"); compare with *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227 (trial court appropriately sustained demurrer to IED claim where plaintiff "pleaded no facts demonstrating the nature, extent or duration of her alleged emotional distress").

Plaintiff's allegations are insufficient to support any of these remaining causes of action. As to gross negligence, Plaintiff's allegations may show Defendants were negligent in allowing the unit to accumulate mold. However, conduct amounting to breach of contract is not tortious unless it violates a duty independent of the contract. *Erich v. Menezes* (1999) 21 Cal.4th 543, 551-552. Plaintiff's allegations essentially show Defendants breached their contract by, among other things, failing to allow Plaintiff to access the property and remediate the mold issue. Plaintiff fails to allege any duty in the complaint that Defendants breached independent of their contract obligations. As such, Plaintiff's allegations are insufficient to support a claim for negligence and/or gross negligence.

As to fraud and negligent misrepresentation, Plaintiff fails to specify any specific representation that Defendants made to Plaintiff and that they knew was false at the time it was made. While Plaintiff alleges that Defendants, among other things, told Plaintiff they would allow her into the unit to remediate the mold and then changed their mind, such allegations do not show Defendants were intending to deceive or defraud Plaintiff. Rather, they tend to show that Defendants were in breach of contract and behaved unreasonably.

Additionally, actionable fraud and negligent misrepresentation are limited to circumstances where a plaintiff alleges a misrepresentation of a past or existing fact. Where a plaintiff alleges a misrepresentation as to a future fact (e.g., Defendants' statement that they would let Plaintiff into the unit in the near future), the allegations are not actionable fraud. See *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 158.

As to IED and NIED, both claims fail at least because Plaintiff fails to allege the element of severe emotional distress. Nor does the Court understand how a landlord might have suffered severe emotional distress based on the misconduct of a tenant under circumstances such as those alleged in the complaint. While Plaintiff's allegations show she suffered damages, it is unclear how those damages might be reasonably understood to include emotional distress. As such, Plaintiff's allegations are insufficient to support IED and NIED.

In sum, the demurrer will be sustained as to the following causes of action in the complaint: (1) gross negligence; (4) fraud; (5) negligent misrepresentation; (6) IED; and (7) NIED. As to whether to allow Plaintiff leave to amend, Plaintiff filed no opposition brief to demonstrate why the legal defects identified herein can be cured by amendment. Absent some explanation from Plaintiff on this point at the demurrer hearing, the demurrer is sustained, without leave to amend, as to these causes of action.

The motion to strike is granted. Plaintiff is granted leave to amend only as to portions of the complaint related to seeking attorneys' fees.

Defendants move to strike portions of the complaint related to IED and NIED; related to seeking punitive damages; related to seeking attorneys' fees and costs; related to seeking restitution; and related to seeking prejudgment interest.

As to portions of the complaint related to IED and NIED, such allegations are already addressed in the foregoing section. The motion to strike these portions of the complaint is granted. Absent some explanation from Plaintiff as to how the defect can be cured, the motion is granted, without leave to amend.

As to portions of the complaint related to seeking punitive damages, the Court agrees with Defendants that Plaintiff fails to meet her heightened pleading burden when seeking punitive damages. While Plaintiff's allegations generally show Defendants breached the contract and behaved unreasonably, they do not show specific, malicious conduct designed to

injure Plaintiff. The motion to strike these portions of the complaint is granted. Again, absent some explanation from Plaintiff as to how this defect can be cured, the motion is granted, without leave to amend.

As to portions of the complaint related to seeking restitution and prejudgment interest, the Court agrees with Defendants that Plaintiff cites no statute authorizing such remedies based on the allegations in this case. Plaintiff alleges no facts showing why restitution rather than contract damages is an appropriate remedy in this case. See *Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1372, 1370 ("restitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason"). Plaintiff also fails to allege facts showing damages are certain or capable of being readily made certain, thus prejudgment interest is not available under Civil Code section 3287. Again, absent some explanation from Plaintiff as to how this defect can be cured, the motion is granted, without leave to amend.

Finally, as to attorneys' fees, the complaint fails to specify a basis for seeking attorneys' fees. While such a basis may exist (e.g., the parties' lease might have a prevailing party attorneys' fees provision), it is not specified in the complaint. Because it is clear where such a basis for seeking attorneys' fees may come from (i.e., from the lease agreement), the Court will affirmatively extend Plaintiff leave to amend to cure this defect regardless of her arguments on the day of the hearing.

The motion to strike is granted. Plaintiff is granted leave to amend only as to portions of the complaint related to seeking attorneys' fees.

CONCLUSION

Defendants Julia Marie Lysik and Christian Michael Lusk's demurrer is **OVERRULED** as to the following causes of action in the Complaint: (2) breach of contract; and (3) breach of the implied covenant of good faith and fair dealing.

Defendants Julia Marie Lysik and Christian Michael Lusk's demurrer is **SUSTAINED** as to the following causes of action in the Complaint: (1) gross negligence; (4) fraud; (5) negligent misrepresentation; (6) intentional infliction of emotional distress; and (7) negligent infliction of emotional distress.

Defendants Julia Marie Lysik and Christian Michael Lusk's motion to strike portions of the Complaint is **GRANTED**.

Unless Plaintiff Olga Anoshechkina presents explanation and argument on the day of the hearing to show that she can cure the defects identified hereinabove through amendment, Plaintiff Olga Anoshechkina is **GRANTED** leave to amend **ONLY** as to portions of the Complaint related to seeking attorneys' fees.

Plaintiff Olga Anoshechkina is **ORDERED** to file her First Amended Complaint within ten (10) days. See Cal. Rules of Court, Rule 3.1320(g). Alternatively, the original Complaint will remain the operative pleading without a claim for attorneys' fees.

Defendants Julia Marie Lysik and Christian Michael Lusk are **ORDERED** to give notice.

DATED: August 10, 2026

Lee S. Arian

Judge of the Superior Court